Brazoria County District Court

Cause No. 2024-CV-0046

Matthew Blevins, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	November 23, 2024
Plaintiff's counsel:	Hannah Bell, Morris & Miller LLP

PARTIES

Plaintiff Matthew Blevins is an individual residing in Texas who was injured in the collision described below. Defendant is an automobile insurance company authorized to write motor vehicle insurance in the State of Texas, which issued the policy covering the at-fault driver and may be served through its registered agent.

FACTS

On October 16, 2023, Plaintiff was lawfully parked in a marked stall in a retail parking lot in Conroe, Texas, when a vehicle operated by an insured of Defendant backed out of an adjacent space without yielding and struck the driver's side of Plaintiff's vehicle. The impact was sufficient to push Plaintiff's vehicle forward and to cause airbag deployment in the other vehicle. Plaintiff reported the collision to store security and to the police, and a written report was prepared at the scene. Plaintiff submitted a claim to Defendant, which acknowledged coverage for its insured's liability but has not made a fair settlement offer.

NEGLIGENCE

The at-fault driver owed a duty to keep a proper lookout, to control the vehicle, and to yield the right-of-way when backing from a parking space. The driver breached those duties by backing without checking for oncoming traffic and by failing to yield to Plaintiff's vehicle. Defendant is liable for its insured's negligence to the extent of the policy limits and is further liable under the Texas Insurance Code and the Deceptive Trade Practices Act for unreasonable delay and failure to attempt in good faith to settle a claim once liability became reasonably clear.

DAMAGES

As a direct result of the collision, Plaintiff suffered a neck strain with muscle spasms, headaches, and restricted range of motion. Plaintiff has incurred medical expenses for emergency evaluation, imaging, physical therapy, and prescribed medication, and has lost wages from missed work. Plaintiff continues to experience pain and stiffness and will likely require further treatment. Plaintiff seeks actual damages, consequential damages, pre-judgment and post-judgment interest, costs of court, and damages in the amount of $129,000.00.